

J.Vignesh vs P.Vijayalakshmi on 9 November, 2022

Author: V.M.Velumani

Bench: V.M.Velumani

C.M.A.No.2305 of 2022

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09.11.2022

CORAM:

THE HONOURABLE MS.JUSTICE V.M.VELUMANI
and
THE HONOURABLE MR.JUSTICE SUNDER MOHAN

C.M.A.No.2305 of 2022
and C.M.P.No.17765 of 2022

J.Vignesh

.. Appell

Vs.

P.Vijayalakshmi

.. Respo

Prayer: This Civil Miscellaneous Appeal is filed under Section 19 of the Family Courts Act, against the order and decretal order dated 29.04.2020 made in O.P.No.1661 of 2020 on the file of IV Additional Principal Judge, Family Court, Chennai.

For Appellant : Mr.R.Venkatesh

For Respondent : Mr.K.Elango

<https://www.mhc.tn.gov.in/judis>
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C.M.A.No.23

JUDGMENT

(Judgment of the Court was delivered by V.M.VELUMANI,J.) The appellant/husband filed O.P.No.2076 of 2019 under Section 9 of the Hindu Marriage Act, 1955, for restitution of conjugal rights, on the file of the IV Additional Principal Judge, Family Court, Chennai.

2.The respondent/wife filed O.P.No.1661 of 2020 under Section 13(1)(ia) and 12(i)(c) of Hindu Marriage Act, for dissolution of marriage conducted between the appellant and respondent on 23.11.2017, on the ground of cruelty and for a direction to the appellant to deliver the jewels, silver and other movables presented by the respondent's parents.

3.The learned Judge by the common order dated 29.04.2022, dismissed O.P.No.2076 of 2019 filed by the appellant/husband for restitution of conjugal rights and partly allowed O.P.No.1661 of 2020 filed by the respondent/wife, granting divorce on the ground of cruelty and dismissed the 2nd prayer sought for by the respondent in O.P.No.1661 of 2020 under Section 12 (1)(c) of Hindu Marriage Act, for a direction to <https://www.mhc.tn.gov.in/judis> the appellant to deliver the jewels, silver and other movables presented by the respondent's parents.

4.Challenging the said common order dated 29.04.2022 allowing O.P.No.1661 of 2020, the appellant/husband has come out with the present appeal.

5.When this matter is taken up for hearing today, both the learned counsel appearing for the appellant as well as the respondent submitted that the parties have settled the matter and they filed Joint Memo of Compromise dated 09.11.2022 duly signed by the appellant, respondent and their respective counsel and prayed for passing of decree in terms of Joint Memo of Compromise.

6.The Joint Memo of Compromise dated 09.11.2022 duly signed by both the appellant as well as respondent and their respective counsel is taken on file and the same is recorded.

7.Recording the Joint Memo of Compromise and the submissions of the learned counsel appearing for the appellant as well as the <https://www.mhc.tn.gov.in/judis> respondent, the Civil Miscellaneous Appeal is disposed of in terms of Joint Memo of Compromise dated 09.11.2022. The Joint Memo of Compromise dated 09.11.2022 shall form part of the decree. Consequently, the connected Miscellaneous Petition is closed. No costs.

Post this matter for 'reporting compliance' on 01.12.2022.

(V.M.V., J) (S.
09.11.2

Internet : Yes / No
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Note: Registry is directed to issue copy of decree after reporting compliance.

<https://www.mhc.tn.gov.in/judis> V.M.VELUMANI, J.

and SUNDER MOHAN,J.

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1.IV Additional Principal Judge Family Court Chennai.

2.The Section Officer, VR Section, High Court, Madras.

09.11.2022 <https://www.mhc.tn.gov.in/judis>